

Legislative Brief — Minnesota Digital Due Process Act

Executive Summary

Government agencies increasingly utilize automated systems, predictive analytics, artificial intelligence, risk-scoring tools, and algorithmic decision-support systems.

These technologies may improve efficiency, reduce costs, identify fraud, allocate resources, and assist public servants in carrying out their duties. However, questions arise regarding transparency, accountability, due process, and constitutional protections as adoption expands.

This Act does not prohibit the use of artificial intelligence or predictive technologies. It establishes a clear operational principle: no individual should be subjected principally or solely to a material adverse governmental action because of an automated prediction, algorithmic determination, or risk score without meaningful, documented human review and independent corroborating evidence.

Key protections in the proposal include:

- A Human Review requirement that includes documented rationale and reviewer authority to override automated outputs;
- An Independent Supporting Evidence standard requiring corroborating facts or records for consequential actions;
- Prompt notice to affected individuals (except in exigent circumstances, within 30 calendar days) describing the system's role and how to seek review; and
- Agency implementation planning and recordkeeping with a minimum five-year retention for relevant records, subject to lawful exemptions.

The proposal balances constitutional safeguards with governmental needs by permitting lawful technological use while ensuring accountability and transparency in consequential decisions.

(Full legislative brief and supporting text are available in the packet
Minnesota_Digital_Due_Process_Packet/02_LEGISLATIVE_BRIEF/02_Legislative_Brief.md.)